

Uttarakhand Annual Transfer for Public Servants Act, 2017

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State of Uttarakhand - Act

Uttarakhand Annual Transfer for Public Servants Act, 2017

UTTARAKHAND

India

Uttarakhand Annual Transfer for Public Servants Act, 2017

Act 1 of 2018

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Uttarakhand Annual Transfer for Public Servants Act, 2017

(Uttarakhand Act

1 of 2018

)

An Act to determine a procedure for proper, impartial, objective and transparent annual transfers etc. of the Uttarakhand Public Servants Be it enacted by the Legislative Assembly of State of Uttarakhand in the Sixty eighth year of the Republic of India as follows-

1.

Short title, commencement and application.

(1)

This Act may be called the Uttarakhand Annual Transfer for Public Servants Act, 2017.

(2)

It shall come into force at once.

(3)

This Act shall be applicable for all services of State except All India Services, State Civil Service and State Police Service and all services under control of High Court and the 'State Government may, by notification, apply it to Corporation, Board and Local Bodies.

2.

Overrrtding effect.

- This Act shall have effect notwithstanding anything inconsistent therewith contained in any other service rules before the commencement of this Act.

3.

Definitions.

- .In this Act, unless there is anything repugnant in the subject or context-

(a)

"Constitution" means the Constitution of India;

(b)

"Government" means the Government of Uttarakhand;

(c)

"Governor" means the Governor of Uttarakhand;

(d)

"Serious Patient" means the spouse and family (which includes the children of the age up to 18 years and parents) of any employee suffering from a serious diseases and it includes Cancer, Blood Cancer, AIDS/HIV (positive), Heart disease (Having Bypass surgery or Angioplasty done) Kidney disease (dependent on the dialyses due to failure of both the kidneys or kidney transplanted or one kidney removed), Tuberculosis (both the lungs infected or one lung fully damaged), SARS (third stage), epilepsy, mental disease and any such other disease for which State Medical Board doesn't recommend for posting in any particular place/area and the committee constituted under Section 27 of the Act gives its approval thereon;

(e)

"Disability" means such disabilities which include complete blindness, without both legs, one incomplete leg, paralyzed (one hand or one leg) or regarding of 'percentage disability', disability more than 40 per cent;

(f)

"Certificate of Competent Authority" means a certificate for 'serious patient' issued by the All India Medical Institute, Post Graduate Institute of Medical Sciences, State Medical Board, authorized medical institutions of the State or State/district level authority/committee nominated by the State Medical Department and disability certificate issued by Competent Authority as provided in the relevant Act for disabilities;

(g)

"Fitness Certificate" means certificate issued by the Medical Board/competent authority for being fit to discharge his/ her duty by the employee of serious disease or disability category inspite of being under treatment / disability;

(h)

"Senior employee" means an employee of the age of 55 years and above when the age of retirement is 60 years and the age of 60 years and above when the age of retirement is 65 years as on 31st May of the relevant year;

(i)

"Accessible and Remote areas" means accessible and remote areas mentioned district wise under this Act as per Appendix 1.2 and 3;

(j)

"Place of posting" means place /site of posting at the time of consideration for transfer of the employee.

4.

Classification of employees for posting.

- The employees shall be classified in the following categories for their posting; namely-

(1)

such employees for whom there is provision to be posted from district Headquarter to village level;

(2)

such employees for whom there is provision to be posted at division level;

(3)

such employees for whom there is provision to be posted at State level and their posting is to be done by the Government and Head of department.

5.

Identification, and disclosure of accessible and remote areas.

- Head of the office/ Head of the Department, as the case may be, of each department shall proceed to identify the place of postings under accessible and remote areas in accordance to the classification provided in Section 4 and take such measures for its disclosure including display in the website of Uttarakhand, as may be necessary for wide circulation and publication.

(2)

Such departments where all work places are classified as per determined norms 01 above said sub-section (1) in the Appendixes of the Act in view of the special circumstances of the department, the department may predetermine the norms by placing proposal in this regard before the committee constituted under Section 27 of the Act.

6.

Kind of Annual transfer.

- There shall be following kind of Annual transfer, namely-

(a)

Compulsory transfer from accessible area to remote area;

(b)

Compulsory transfer from remote area to accessible area; and

(c)

Transfer on the basis of request.

7.

Norms of compulsory transfer from accessible area to remote area.

- There shall be following norms for compulsory transfer from accessible areas to remote areas; namely-

(a)

The employees, who is posted for 4 years or more at present place of posting in accessible area shall be compulsorily transferred subject to the number of vacancies available and anticipated under Section 10 in remote area;

(b)

The employees, who are working for less than 4 years at present place of posting in accessible area but during whole service period have served in accessible area for more than 10 years, shall also be compulsorily transferred from accessible area to remote area subject to availability of vacancies/posts in remote area as above:

Provided that for the counting of total service period in accessible area the proviso of definition of accessible area given in Appendix specified in Section 3 of this Act shall also be taken into consideration;

(c)

The employee being transferred to remote areas from accessible areas shall compulsorily be transferred to accessible area again on completion of minimum period prescribed for posting in remote areas and the date of their relieving from remote areas shall be clearly mentioned in their transfer order also;

(d)

The employees under following categories shall be exempted from compulsory transfer from accessible area to remote area, namely-

(i)

Senior employees;

(ii)

Such employees who have already completed minimum 10 years service in remote areas, and;

(iii)

The: employees seriously i 11/disabled under Section 3 and who submit a certificate from competent authority

(iv)

Such spouse whose only son/daughter is included in definition of disability;

(v)

Spouse of employees posted in military and Para military force.

8.

Maximum ceiling of Transfer.

- The maximum ceiling of compulsory transfer from accessible area to remote area shall be as follows, namely-

"The compulsory transfer from accessible area to remote area shall be made up to the limit of availability of vacancies in remote areas in the concerned cadre. The counting of eligible employees for such transfers shall be done in order of total service rendered in accessible area during the whole service period, i.e., such employees who have completed more than 4 years posting in accessible area or whose total service in accessible area during the whole service period has been more than 10 years and who do not fall under any exemption shall be identified for transfer up to the limit of availability of vacancies in remote areas of concerned cadre by placing them in descending order according to their total period of posting in accessible area."

9.

To prepare a list of eligible employees for compulsory transfer to remote areas from accessible areas and inviting options.

- For compulsory transfer to remote area from accessible areas, a list of eligible employees up to the available and anticipated vacancies in remote areas shall be prepared. On preparation of such list, options shall be invited from eligible employees for maximum 10 remote places by publishing or circulating a list of available and anticipated vacancies in remote areas. It shall be compulsory for the employees to give option in preferential order. A list of eligible employees for transfer and of vacancies shall also be displayed in the website of Uttarakhand.

10.

Norms of compulsory transfer from remote area to accessible areas.

- There shall be following norms for compulsory transfer from remote area to accessible area, namely-

(a)

The employee who is posted for 3 years or more at the place of their present posting in remote areas shall be compulsorily transferred to accessible area.

(b)

If any employee is working for less than 3 years at their present place of posting but have served in remote area during whole service period for more than 10 years, shall be compulsorily transferred from remote area to accessible area. To determine such period, the proviso of definition of remote area mentioned in Appendix specified under Section 3 shall be taken into consideration;

Provided that while counting this period only such period shall be counted during which the employee was actually working in the remote area, if he is attached to accessible area, then period of attachment in accessible area and the period of leave excess to one month in a year shall not be counted for the purpose of calculating the period of posting in remote area.

11.

Maximum ceiling of compulsory transfer.

- The maximum ceiling of compulsory transfer from a remote area to accessible area shall be as follows, namely-

(a)

The compulsory transfer from a remote area to accessible area shall be made upto a limit of total vacancies available and anticipated under Section 7 in accessible area in concerned cadre. The counting of eligible employees for transfer shall be done in order of period of total service rendered in remote area during whole service period;

(b)

Such employees who are posted for more than 3 years at their place of posting or rendered services for more than 10 years, during the whole service period in remote area shall be identified for transfer in descending order according to the total period of posting in remote area in their whole service period upto the limit of availability of vacancies in accessible area.

12.

To prepare a list of eligible employee for compulsory transfer from remote areas to accessible area and inviting options.

- A list of employees eligible for compulsory transfer from remote area to accessible area shall be prepared. By publishing/circulating vacancies available and anticipated in accessible areas, option shall be invited from the eligible

employees for maximum 10 desired places. It shall be compulsory for the employees to give his option in preferential order. Vacancies and list of employees eligible for transfer shall also be displayed in the website of Uttarakhand.

13.

Transfer on the basis of request.

- The following procedure shall be adopted for transfer on the basis of request, namely-

(1)

Any employee shall be eligible to apply for transfer on request from accessible area to remote area;

(2)

An employee eligible for transfer from remote area to accessible area on completing three years in a particular remote place or 10 years in remote area during whole length of service, shall be eligible to apply for transfer on request in remote area only:

Provided that the place opted for transfer shall be out of his/her home development block and such employee shall not be posted again to the place from where he/she has been transferred before the period of 6 years.

(3)

In case, a husband/wife serving in Government of Uttarakhand wishes to be posted at same place in a accessible area or remote area, they shall be eligible to request for transfer/posting at one place accordingly, but after such posting the spouse shall be eligible for transfer in general transfer season if he/she fulfills the norms of 5/3 years service in a particular place or 10 years total service.

(4)

The employees, on the basis of their own or spouse's (as applicable) serious illness/ disability shall be eligible to request for transfer to area/place of their choice.

(5)

Parents of mentally retarded children or suffering from such illness which has caused total dependance on others for care/routine activities, on the basis of certificate from Medical Board, shall be eligible to apply for transfer on request from accessible to remote or remote to accessible area/place for proper medical treatment of their child; and

(6)

Widow, widower, divorcee declared by competent court, divorcee employee and senior employee shall be eligible to request for transfer to area of their choice.

Note. - Transfer on request may be made against the available vacancies published under Section 12 and request shall not be admissible for the post which is not vacant.

14.

Inviting Application for transfer on the basis of request.

- Applications for transfer shall be invited along with the option for maximum 10 desired places on the basis of request from employees by displaying the available and anticipated vacancies on the notice board of concerned offices and on the website of Uttarakhand. It shall be compulsory for the employees to give his option in preferential order.

15.

Determination of a prescribed date for counting for transfer.

(1)

Counting of period for the purpose of transfer shall be done on the basis of date of 31st May of each year.

(2)

All such offices/ Institution, where the period of alteration of charge is not determined, the alteration in charge/transfer may be done in the interval of five years.

16.

Constitution of transfer Committee and duties of the Committee.

(1)

For the transfers of employees, a permanent transfer committees shall be constituted by each department at government level, head of the department, division and district level. In addition to the officers of the concerned department an officer from another department shall also be nominated. At government level, an officer shall be nominated by the Personnel Department in the transfer committees of other departments except in Forest and Infrastructure Development Commissioner Branch, Agriculture Production Commissioner Branch and Social Welfare Commissioner Branch. For transfers in the departments falling under above mentioned branches, the nomination of an

officer of any other department of the branch in transfer committee shall be made by the head of the concerned branch.

(2)

The Chairman of each committee constituted at the district level for transfer of employees of district level cadre within the District shall be the District Magistrate or an officer nominated by him.

(3)

All the proposals, applications and options received for transfer and details of vacancies in remote and accessible areas shall be placed before the committee constituted for this purpose by the concerned department. The certified list of employees eligible for transfer according to aforesaid Sections 9, 12 and 13 shall also be placed before the transfer committee.

(4)

The committee shall prepare minutes after consideration on the basis of provisions of this Act, regarding each employees applying for transfer whose details are placed before the committee wherein the basis of allotting vacancy to the employee to be transferred namely, "option", "own request", "medical", "disabled", "senior employee", etc. shall be clearly mentioned. The committee shall give in its minutes, with reason, a separate list of employees whose transfer could not possible to be recommended as per the provisions of this Act.

(5)

Transfer orders as per recommendations of the transfer committee shall be issued by the competent authority.

17.

Consideration on transfer proposals by transfer committee.

(1)

The transfer committee shall consider the transfer proposal under this Act in the following order-

(a)

Compulsory transfer from accessible place to remote area-

The transfer committee shall firstly consider the compulsory transfer from accessible area to remote area; namely-

First of all, the transfer shall begin from the employee spending longest time in accessible areas during their whole service period and option given by such employee for vacancy of remote area shall be accepted; namely-

Considering the employees one by one in descending order as per length of service rendered in accessible area during whole service period shall be allotted vacancy available in the remote area according to the option:

Provided that if more than one employee out of total employees identified for transfer have given option in same preferential order for a particular vacancy identified in remote area, the vacancy shall be allotted to such employee who have served for the least period in accessible area:

Provided further that in case, inspite of consideration as above still remains some employees who have not been able to get the place of their desired option or there is any such employee who has not given any option, the transfer committee shall prepare a list of such employees as well as vacancies in order of their serial number in the original list of the employee identified for transfer and available vacancies and each employee of the list so prepared shall be allotted a vacancy mentioned in same order in the list of remaining vacancies."

(b)

Transfer on the basis of request-

After compulsory transfer under clause (a) above, the transfer committee shall consider the transfer of employees eligible for transfer on the basis of request in the following order-

(i)

request by seriously ill/disabled employees or request made on the basis of spouse's serious illness/disability(as applicable);

(ii)

request by parents of mentally retarded and helpless children;

(iii)

serving husband/wife whose only son/daughter is disabled;

(iv)

request by husband/wife serving in Government of Uttarakhand for posting in same place/area;

(v)

request by widow, widower, divorcee declared by competent court and divorce employee and senior employees;

(vi)

request for transfer from remote place to remote place/area;

(vii)

at last, request for transfer from accessible area to remote area.

(c)

Compulsory transfer from remote area to accessible area-

The transfer committee, after considering transfer mentioned in clause (a) and clause (b) shall dispose off the matter of compulsory transfer from remote area to accessible area as follows-

(i)

The employees eligible for transfer from remote area to accessible area shall be arranged in descending order starting from the employee having longest period of service rendered in remote area during the whole period of service;

(ii)

From the list prepared as above, the husband/wife serving in Government of Uttarakhand shall be allotted the desired place of vacancy, if available;

(iii)

Starting from the employee having served for the longest period in remote area, desired place shall be allotted as per availability of the vacancy. In the same order desired place shall be allotted to the other employee in descending order on availability of vacancy:

Provided that if option is given in same preferential order by more than one employee for a particular vacancy in accessible area, the vacancy shall be allotted to such employee who has served for longest period in remote area:

Provided further that in case, inspite of consideration as above still remains some employees, who have not been able to get the place of their desired option, the transfer committee shall prepare a list of such employees as well as vacancies in order of their serial number in the original list of the employees identified for transfer and available vacancies and each employee of the list so prepared shall be allotted a vacancy mentioned in same order in the list of remaining vacancies.

(2)

The transfer committee shall take decision by taking into consideration the following facts while considering on options given for transfer by the employees-

(a)

Officers of group 'A' and 'B' shall not be posted in their home district.

(b)

Clerical and non-administrative employees of group 'C' and employees of group 'D' may be posted in their home district except in their home place. "Home district" means such village/zone/tehsil of which he is domicile.

(c)

Transfers on administrative ground shall not be made from accessible to accessible place/area and such employee shall not be posted again in that district/place before expiry of 5 years in any circumstances.

(d)

The President/Secretary of recognised service organisations of government servants, which also includes president/secretaries of district branches, may not be transferred during the period of their holding office till remaining in their post or 02 years from the date of holding office, in the organisation, whichever is earlier, but other provisions of this Act shall duly applicable to them.

(e)

Transfers shall be made only against cadre post/places and shall not be made against the post/places which are out of the cadre (such as, inter district/inter divisional transfers for district/divisional cadres):

Provided that cadre change/out of cadre transfer of any employee shall be allowed in case of marriage between two employees or displacement of employee due to acquisition of properties for development projects/natural calamity subject to the condition that such employee shall be treated as junior most in the new cadre and approval of the committee constituted under Section 27 shall be necessary to obtain.

18.

Procedure of Posting on Appointment/Promotion and other Transfer.

- In addition to annual/general transfer, the procedure of posting in appointment/promotion and other transfers shall be in

following conditions, as follows-

(1)

At the time of first appointment, posting shall compulsorily be made in remote areas.

(2)

At the time of promotion, the posting shall essentially be made in remote areas subject to the conditions of clause (d) of Section 7:

Provided that if the post of promotion does not exist/is not vacant in remote areas, the posting after promotion may be made against vacancy available in accessible areas;

(3)

Mutual transfers of two employees shall be made on willingness for transfer in place of each other (accessible and remote or remote and remote or accessible and accessible for which no travelling allowance shall be allowed and mutual transfer shall not be admissible between two employees working in accessible places;

(4)

On enquiry, on the grounds of serious complaints of misconduct, misbehaviour with senior officers and lack of interest in work, etc. after necessary enquiry and confirmation, transfer of such employee may be made on administrative grounds: Provided that the transfer on administrative grounds shall not be made casually or on the basis of complaints of routine nature and in the orders of such transfer it shall be necessary to mention Administrative Grounds.

(5)

The competent authority may issue posting/transfer orders besides the transfer to be made as per clause (1) to (4) aforesaid in separate and different period also and it shall not be necessary to bring such cases before the transfer committee:

Provided that on transfers made on administrative grounds the competent authority shall have to take approval from the one rank higher officer.

19.

Compulsory norm for promotion posting in remote areas.

(1)

For first and second promotion, it shall be compulsory for employee to spend minimum half period in the remote area of the minimum qualifying service prescribed for such promotion;

(2)

Assuming the period from the commencement of this Act upto 30-6-2020 as transition period during this period, in case of promotion of an employee, if he/she has not spent such half period in a remote area, the promotion shall be considered only if the employee gives an undertaking that he/she shall remain posted compulsorily in a remote area till completion of such period:

Provided that in case such employee is covered by clause (d) of Section 7, he shall not be bound to give an undertaking as aforesaid or to be posted in remote area:

Provided further that the employee posted in remote area after giving an undertaking at the time of first promotion, completes total qualifying service for second promotion after completing the period as mentioned in the undertaking in remote area, the provision of spending half of the qualifying service in remote area for second promotion shall not be binding on such employee and after completion of the period of undertaking if such employee fulfills other norms for second promotion with whatever period of service in remote area, shall be considered eligible for second promotion.

(3)

The provision of minimum qualifying service in remote areas for first and second promotion shall wholly effective from 1-7-2020 and there from for promotion, minimum half of the qualifying service shall have to be compulsorily spend in remote areas, only then the promotion shall be considered. A provision in this regard shall be separately made in the service rules.

(4)

Those employees who have not been able to be posted in remote areas during their service period, may apply for transfer on the basis of request in remote areas as per clause (1) of Section 13 for being eligible for promotion in future.

20.

Incentive to be given on posting in remote areas.

- In case of posting in remote areas employee shall be allowed following benefits as incentive, namely-

(a)

In case, any employee posted in any remote work place situated on more than 7000 feet height, then one year service shall be considered equivalent to two year service in accessible place.

(b)

In case, any employee posted in any remote work place situated on less than 7000 feet height, then one year service shall be considered equivalent to one year three months service in accessible place.

21.

Providing powers for transfer.

(1)

Transfers of the officers of Group 'A' shall be made by the Government on recommendations of the transfer committee constituted for this purpose and transfers of officers of Group 'B' shall be made by head of the concerned departments on the basis of recommendations of transfer committee:

Provided that where there is no post of head of the department, the transfers of officers of Group 'B' shall be made by Government on recommendations of transfer committee.

(2)

The transfers of district level employees of Group 'C' and 'D' whose transfers are to be made within the district, shall be made by the appointing authority on the basis of recommendations made by the committee (under the Chairmanship of District Magistrate or an officer nominated by him) constituted at district level for transfer;

(3)

After the date indicated as per time table mentioned in Section 23 the transfers of officers of Group 'A' and Group 'B' transfers may be made with the approval of the Chief Minister and of employees of Group 'C' and Group 'D' shall be made by the authority of one rank higher of the competent authority for making such transfers.

22.

Reliving of the transferred employee.

(1)

Instructions shall be given in the transfer orders itself to take charge without waiting for the reliver within certain date/one week from the date of issue of the order. The concerned authority shall accordingly relieve the transferred employee immediately. A copy of transfer order shall be sent to the concerned treasury officer so as to not to draw his pay after seven days of issue of transfer order of transferred employee. The relieved employee may be able to avail the 'joining time' allowed as per rules only after taking charge of the post of new posting and they will avail only journey time after relieving as per rules;

(2)

Transferred employee shall not be sanctioned leave of any kind.

(3)

In case of charge not being taken by employee at the place of new posting, punitive action shall be taken against such employee under Section 24.

(4)

A representation may be given by transferred employee to remove any pithy/typing error existing in transfer order within three days after issuing of transfer order to one rank higher officer than transferring authority, who shall within one week after receiving opinion from transferring authority shall dispose the representation.

23.

Time table for transfer.

- For general transfers in each year, following time table shall be observed; namely-

Date of identification according to standard of work place by head of office/head of department-

31, March

Constitution of transfer committee at

government level, head of the department level, division level and district level by all the departments-

1, April

Publishing and displaying on website a list of working places of accessible/remote areas, employees eligible for transfer, available and anticipated vacancies for each cadre:-

15, April

Date of inviting options for maximum 10 desired places from the employees eligible for compulsory transfer:-

20, April

Date of inviting application for transfers on the basis of the request-

30, April

Last date of receiving option/application under 3 and 4 above-

15, May

Displaying on website the details of options/applications received-

20, May

Meeting of transfer committee & period of giving recommendations to competent authority-

25, May to 5

June

Last date of issuing transfer orders by the competent authority-

10, June

Displaying transfer orders on website of Government of Uttarakhand-

Within 2

days from the issue of transfer orders

Last date of relieving of transferred employees-

Within 7

days from the issue of transfer order

Last date of assuming charge by transferred employees-

Within 10

days from the issue of transfer order

Provided that the State Government from time to time, may make necessary amendment in the time table by issuing an order.

24.

Representation and recommendation to stay the transfer and penalty on violation of the Act.

(1)

In case representations are received from parents, spouse or other relatives the transferred employee for staying of transfer, it shall be compulsory kept in the personal file of employee and such representations shall not be forwarded and such conduct shall be entered in the Annual Confidential Report of the concerned employee also.

(2)

In case any Government servant endeavor to make pressure against the transfer order, the disciplinary action, according to the relevant provisions of the Uttarakhand Government Servant (Discipline and Appeal) Rule, 2003 (as amended from time to time) shall be taken against such employee by treating such act/conduct a violation of "Government Servant Conduct Rules".

(3)

Any one who fails to comply with any order or direction given under this Act within the period as specified in the said order or direction or violates or attempt to violate any provision of this Act, shall be punishable under relevant provisions of "the Uttarakhand Government Servant (Discipline and Appeal) Rules, 2003 (as amended from time to time).

25.

Charge note.

- Before relieving of transferred officers of Group 'A' and 'B', it shall be necessary to prepare a charge note regarding the important cases/development programs, etc. of their charge, one copy of which shall be kept in guard file and one shall be forwarded to the concerned controlling officer.

26.

Relevant Rules to be mentioned in Transfer Orders.

- In the 'Transfer order' to be made in pursuance of this Act, it shall be necessary to mention the relevant section and procedure of transfer of the concerned employee. It shall also be displayed on the website of Uttarakhand after the issue of transfer orders.

27.

Removal of difficulties in the application of the Act.

(1)

After the promulgation of this Act, this Act shall have over-riding effect on Acts/Annual Transfer Policies of other departments:

Provided that if any change in any provision of this Act, is required by any department due to any specific circumstances of the department or any deviation in necessary or relaxation is indispensable, the proposal of such changes/deviations/relaxations shall be submitted with reasons before the committee constituted under the Chairmanship of Chief Secretary and consisting the following members-

(a)

Additional Chief Secretary/Principal Secretary Forest and Infrastructure Development Commissioner;

(b)

Additional Chief Secretary/Principal Secretary Agricultural Production Commissioner; and

(c)

Principal Secretary, Personnel as its member and necessary changes/deviations/ relaxations shall be allowed after the approval of the Chief Minister on recommendations made by this committee.

(2)

This committee shall submit its recommendations for the approval of Chief Minister regarding the difficulties arising in application of this Act or such unforeseen matters which are not included in this Act, thereafter the State Government may make rules as required.

28.

Records concerning the transfers to be kept.

- Complete documents and all records pertaining to the procedure adopted for transfer under this Act shall be kept in a proper manner in a separate file after carefully compiling them and these documents/records shall be kept ready for inspection of senior officers. It shall be the responsibility of the officer issuing the transfer order to execute this work. This file shall be available on each working day for the inspection of employee and in case, any employee needs a certified copy of any documents from this file, it may be made available after taking fee of Rs. 2.00 per page.

Appendix 1

(See clause (i) of Section 3)

The norms of accessible and remote area on the basis of the district level places which is posted from district headquarters to village level

Identification of accessible and remote areas for the posting to be done from district to the village level in every department shall be made by the committee constituted under the chairmanship of the District Magistrate, according to the norms given in the Act as per the requirement of the department.

Provided that the working place which is located at height of more than 7000 feet, the one year posting there shall be deemed equivalent to two years posting in remote area.

Appendix 2

(See clause (i) of Section 3)

Definition of accessible and Remote areas The personnel who are posted in the district headquarters, Tehsil headquarters. Block Development headquarter, Municipal Corporation/Municipal Board/Nagar Panchayat, identification of accessible and remote areas district wise shall be made as per the requirement of the department by the committee constituted under the Chairmanship of the commissioners. In which the accessible and remote area shall be identified on the basis of general infrastructure facilities such as Road, Electricity, Water, Education, Medical, Train and Aeroplane in the District headquarters, Municipal Corporation, Municipal Board, Nagar Panchayat area, Development block headquarters.

Provided that the working place which is located at height of more than 7000 feet, the one year posting there shall be deemed equivalent to two years posting in remote area.

Appendix 3

(See clause (i) of Section 3)

Definition of Accessible and Remote areas The personnel who are posted only in the district headquarters/directorate headquarters and they are transferred from the Government level or from the Head of Department level, the identification of accessible or remote areas for them according to the requirement of the department, shall be made on the basis of connectivity of the Road, Electricity, Water, Education, Medical, Train and Aeroplane as per the general infrastructure of each department according to the said norms.

Provided that the working place which is located at height of more than 7000 feet, the one year posting there shall be deemed equivalent to two years posting in remote area.

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